

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSE H KONIUK,

Petitioner

VS.

RACHEL M KONIUK,

Respondent

) Case Number: FDI-21-794578

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: FC271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jesse Koniuk and Respondent Rachel M. Koniuk (Rachel Gelb).
- 2) On 1/12/26, Respondent filed a Request for Order seeking \$25,000 in Family Code section 271 sanctions. Respondent asserts that Petitioner has repeatedly violated the Court's prior custody/visitation and financial orders. Respondent alleges uncooperative behavior by Petitioner that is not indicative of an intent to co-parent. Respondent also alleges conduct by Petitioner that is delaying the dissolution process. Respondent attaches text messages and Talking Parents communications. The matter was set for hearing on 4/7/26.
- 3) On 3/26/26, the parties filed a Stipulation and Order continuing the hearing from 4/7/26 to 5/14/26.
- 4) On 4/29/26, Petitioner filed a Responsive declaration and supportive pleading in opposition to Respondent's Request for Order. Petitioner asserts that Respondent's sanctions request lacks merit and is duplicative because (a) Respondent filed three attorney's fees requests in the past seven months and four "frivolous" custody motions and (b) the Request for Order does not

1 include a description of the attorney's fees and costs Respondent incurred. Petitioner provides
2 defenses to each allegation of violations of the Court's prior custody/visitation and financial
3 orders that Respondent raised and attached prior Court orders in support of his defenses.
4 Petitioner requests reimbursement of \$2,838 in the form of attorney's fees sanctions for costs
5 incurred responding to the Request for Order.

6 5) On 4/29/26, Petitioner filed a Memorandum of Points and Authorities.

7 **B. Findings and Order**

- 8 1) Respondent's request for \$25,000 in Family Code section 271 sanctions is DENIED. The Court
9 cannot find that Petitioner's conduct has frustrated the policy of the law to promote settlement
10 and reduce the cost of litigation by encouraging cooperation between the parties.
- 11 2) Petitioner's request for reimbursement of \$2,838 in the form of attorney's fees sanctions for costs
12 incurred responding to the Request for Order is DENIED as the Court does not have updated
13 information regarding Respondent's income and assets, which is needed to evaluate whether
14 granting such a request imposes an unreasonable financial burden on Respondent.
- 15 3) The Court will prepare the Findings and Order After Hearing.
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